



A COMMUNITY OF CHOICE

CITY ENGINEER'S OFFICE
2101 O'Neil Avenue
Cheyenne, Wyoming 82001

MEMO

TO: Honorable Mayor Patrick Collins, City of Cheyenne
City Council Members

FROM: Cassie L. Pickett, PE, Engineering Manager

DATE: July 02, 2024

SUBJECT: **Brakes Plus - Improvement Agreement for Pedestrian Connectivity
Improvements In-Lieu of Right-Of-Way Improvements**

Purpose of Project:

This project is the private development of land located near the southeast corner of Ridge Road and Gregg Way for the purpose of a Brakes Plus.

Reason for Contract:

This agreement was the result of the Brakes Plus Development providing a more practical public improvement of pedestrian connectivity for the area rather than half of the right-of-way for Gregg Way through the extents of the property. This is represented within the referenced agreement.

Estimated Cost:

The agreement outlines the details of the contract representing an exchange of improvements, noting a comparable cost associated, and requiring no additional cash-in-lieu. No funding source necessary.

The Engineer's Department has reviewed the request and respectfully recommends approval of the requested Public Improvements Agreement.

City Contract # _____
IMPROVEMENT AGREEMENT

THIS AGREEMENT made and entered into this _____ of July, 2024, by and between (the "Owner"), **Brakes Plus, LLC** (not WY) (the "Holder of a Deed of Trust"), and the CITY OF CHEYENNE, STATE OF WYOMING, a body politic and corporate (the "City").

WITNESSETH:

WHEREAS, the Owner has made proper application and supporting document(s) for request (Exemption from Platting or Site Development Plan), Engineering Plan Review Number PUDC-24-66(the "Case") for the property described in the Case (the "Property");

WHEREAS, as a condition of approval of the Case, the Owner is obligated to enter into an agreement with the City that provides that the Owner shall either construct certain public improvements as established in the City of Cheyenne Municipal Code and Unified Development Code and which area is set forth on **Exhibit A** attached hereto and incorporated herein (collectively, the "Requirement Area") or provide a Cash-in-Lieu Payments of the same (the "Guarantee");

WHEREAS, the term "Cash-In-Lieu" (the "CIL") shall mean those payments made by Owner in advance pursuant to UDC Sections 4.1.5.b.6 and 4.1.5.b.7 to satisfy in full Owner's, Holder of a Deed of Trust, or the Owner obligations with respect to certain specified Public Improvements as set forth herein.

WHEREAS, the Property is 1) uniquely situated and encumbered both by its orientation to and intention to be served by access(es) internal to the shopping center complex; 2) also fronts on an existing, minimally improved public Right-of-Way primarily serving as a secondary access to an unincorporated single-family residential neighborhood, and 3) provides an opportunity to make necessary public pedestrian connections in an existing developed block where no reasonable such connection currently exists;

WHEREAS, as a condition of approval of the Case, the Owner is providing certain alternative improvements to protect and serve the public interest as set forth on **Exhibit B** attached hereto and incorporated herein (collectively, the "Improvements");

WHEREAS, Cash In Lieu Amounts and Financial Security for Public Improvements. Upon the City's acceptance of Owner's construction of the Improvements by a Certificate of Compliance ("COC"); Owner's proportionate fair share of Public Improvements in accordance with UDC Sections 4.1.5.b.6 and 4.1.5.b.7 which payment amounts (the "Cash in Lieu Amounts") shall be as specified as calculated per the Requirement Area on **Exhibit A**, Owner's financial responsibility for such scheduled Public Improvements shall be deemed permanently satisfied with respect to construction on the Property;

WHEREAS, The Parties agree to the installation of those Public Improvements, associated cost estimates and fee schedules, and dedications, easements, payments or

equivalent Improvements for Public Improvement Construction as shown on **Exhibit B**. The Parties agree that the specifications for the Public Improvements delineated in **Exhibit A and B** (including without limitation) timing of commencement or completion, specific locations of the easements and points of beginning/points of termination of easements, roads and water or sanitary sewer lines, road width, and/or water or sanitary sewer line sizes, may be administratively modified by separate agreement of both Parties without the requirement of Cheyenne City Council hearings or approvals. Administrative approval of such modifications shall not be unreasonably withheld, conditioned or delayed;

WHEREAS, the Owner has provided documentation demonstrating that lands plus the estimated Owner proposed sidewalk connection improvements, totaling Fifty-Six Thousand Two Hundred Eighteen Dollars and Sixty-One Cents (\$56,218.61) as shown in Exhibit B are in order of magnitude approximately equal to or greater than the estimated monetary value of the Gregg Way right-of-way improvements required by the City of Cheyenne municipal code that will be constructed at a later date planned for year 2028, an estimated inflated cost (1.12% of estimated) of Fifty-Five Thousand Eight Hundred Eighty-Eight Dollars and Zero Cents (\$55,888.00), derived with inflation from the original 'Engineer's Opinion of Approximate Construction Costs' as shown in Exhibit A; and

WHEREAS, the parties desire to enter into this Agreement to satisfy the above condition of approval.

NOW, THEREFORE, for and in consideration of the mutual promises, covenants, and agreements herein set forth, the parties agree as follows:

1. The Owner shall construct and install, at its sole expense, all the Improvements, except any improvements identified on **Exhibit A** as the Requirement Area. The Owner shall pay to the City cash-in lieu payments or equivalent Improvements in the amount set forth on **Exhibit B**. Such Improvements shall be made or cash- in-lieu paid prior to the issuance of any Certificates of Occupancy.

2. All Improvements shall be constructed in compliance with the following:

a. All documents submitted prior to or at the time of approval of the Case;

b. All laws of the United States, State of Wyoming, and the City and its various agencies, affected special districts and/or servicing authorities; and

c. Such other designs, drawings, maps, specifications, sketches and other matter submitted to and approved by any of the above-stated governmental entities.

3. To secure and guarantee performance of its obligations as set forth herein, the Owner agrees that there shall be no conveyance, sale, or transfer of title of all or any portion of the Property nor shall certificate of occupancy be issued until improvements and/or cash-in-lieu has been received and approved by the City certifying that the Owner has satisfied any and all terms, conditions, notes, and restrictions set forth on the mylar or any supporting document(s) approved

as part of the Case that must be completed by the Owner prior to the issuance of a Certificate of Occupancy, including, without limitation the satisfactory completion of the Improvements or the posting of a Guarantee, or cash-in-lieu for such completion.

4. The Owner and Holder of a Deed of Trust hereby consent and authorize the City to enter onto the Property to construct, install, maintain, and/or replace all or any portion of the Improvements required by the Case. No Guarantee will be accepted for Improvements that lie outside of the Property unless the property owner grants an acceptable easement to the City. Owner and the Holder of a Deed of Trust hereby unconditionally waive and release the City from any and all claims or other legal liability that arise out of or are attributable to constructing, installing, maintaining and/or replacing the Improvements. This consent, waiver and release extends to the City and all its officials, attorneys, agents, employees, and contractors of a landscaping or construction firm.

5. The Holder of a Deed of Trust hereby consents to the imposition of the restriction on conveyance, sale, or transfer as set forth above, as well as all other notes and restrictions set forth on the face of the mylar or any supporting document(s). The Holder of a Deed of Trust, if any, further agrees that in the event it acquires title or control over the disposition of all or any portion of the Property, whether through foreclosure or otherwise, it will comply with the terms of the restriction of sale and other such notes and restrictions.

6. The City and any purchaser of all or any portion of the Property shall have the authority to bring an action to compel the enforcement of this Agreement, including the restriction on sale contained herein. Such authority shall include the right to compel rescission of any sale, conveyance or transfer of any such Property contrary to the provisions this Agreement.

7. This Agreement may be amended from time to time by a written instrument signed by all parties hereto.

8. This Agreement and all restrictions contained herein shall run with the land and shall extend to and be binding upon all successors, assigns, heirs, and personal representatives of all or any portion of the Property.

9. The parties hereby stipulate and represent that all procedures necessary to authorize the execution of this Agreement have been performed and that the persons signing for each of the parties have been authorized to do so.

REMAINDER OF PAGE INTENTIONALLY BLANK

IN WITNESS WHEREOF, the parties have hereto set their hands and seals.

OWNER

BY: _____

STATE OF _____)
) ss
CITY OF _____)

The foregoing instrument was acknowledged before me this _____ day of
July, 2024, by _____ in his/her capacity as the
_____ of _____.

Witness my hand and official seal. My commission expires:

Seal

Notary Public

HOLDER OF A DEED OF TRUST

BY: _____

STATE OF _____)
) ss
CITY OF _____)

The foregoing instrument was acknowledged before me this _____ day of
July, 2024, by _____ in his/her capacity as the
_____ of _____.

Witness my hand and official seal. My commission expires:

Seal:

Notary Public

CITY OF CHEYENNE

BY: _____
Patrick Collins, Mayor

STATE OF WYOMING)
) ss
CITY OF LARAMIE)

The foregoing Agreement was acknowledged, subscribed and sworn to before me by Patrick Collins, Mayor of the City of Cheyenne, a municipal corporation organized under the laws of the State of Wyoming, appeared before and was personally known to the officer making the certificate, this _____ day of _____, 2024.

Witness my hand and official seal.

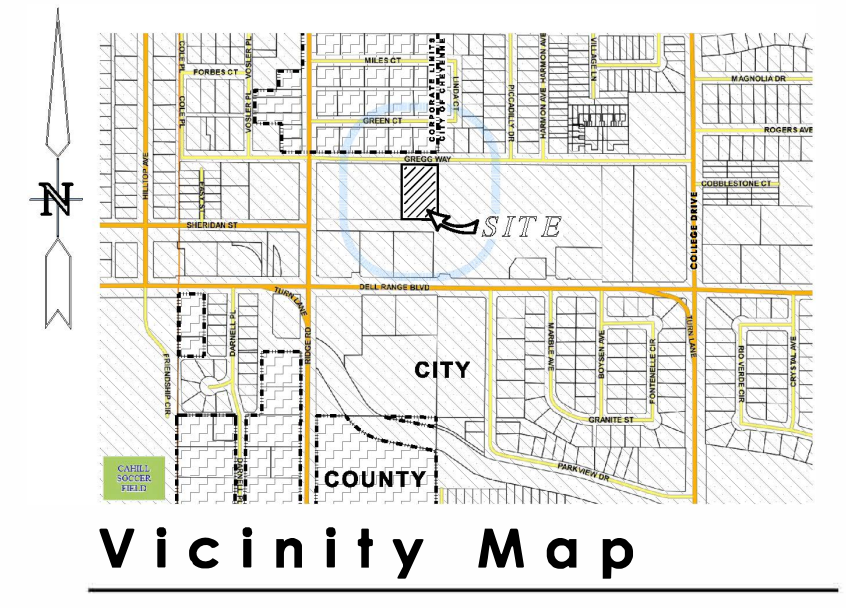
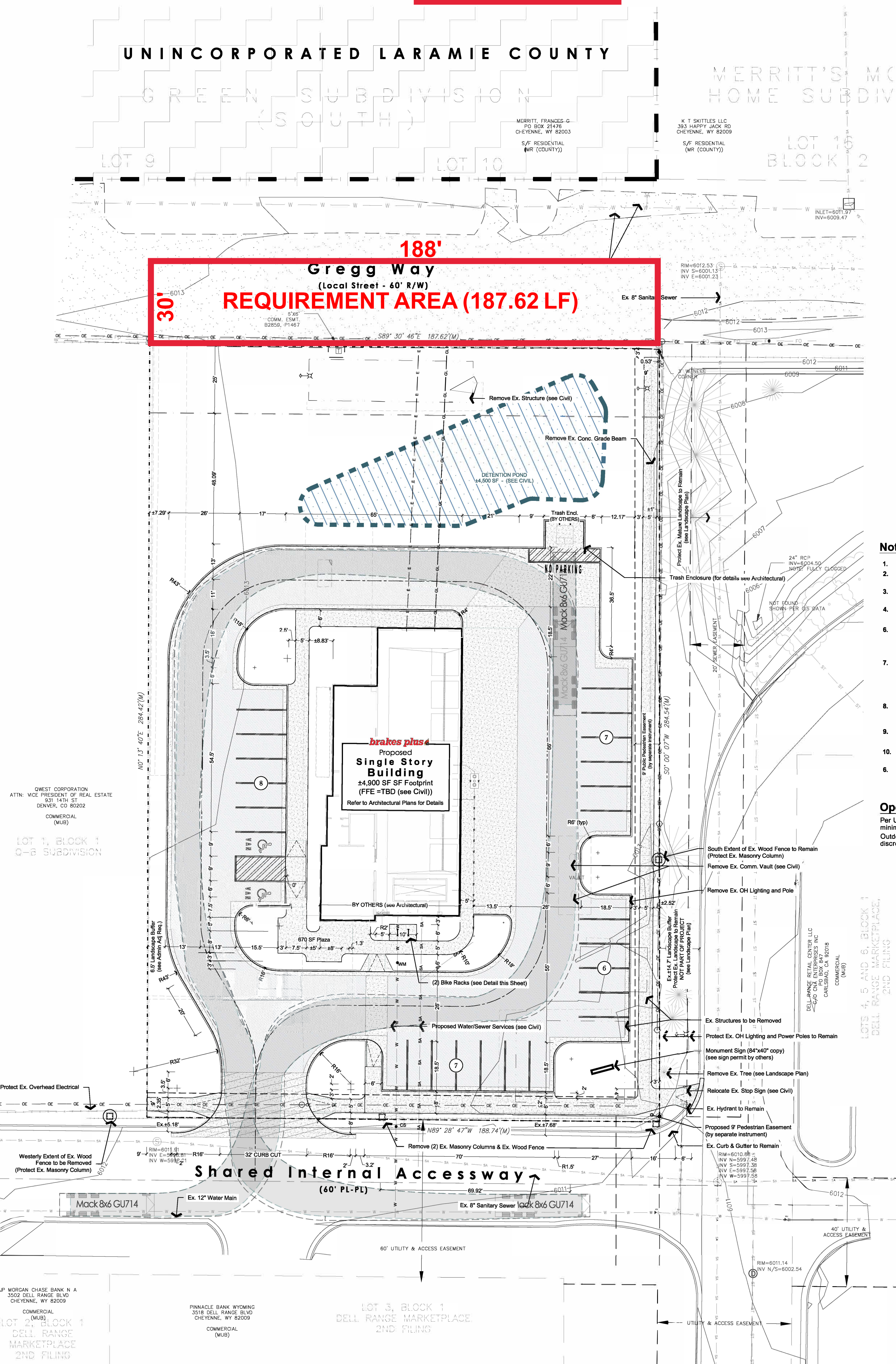
Notary Public

My Commission Expires: _____

ATTEST:

Kristina F. Jones, City Clerk

EXHIBIT A



Development Summary

Legal Description:	Lot 2, Block 1, Q-B Subdivision
Property Owner:	Cheyenne Real Estate LLC, ET AL
Property Current Address:	3421 Gregg Way, 82009
Property Requested Address:	TBD - Dell Range, Blvd.
Proposed Use:	Automobile Service Repair
Existing Zoning:	MUB - Mixed-Use Business-Emphasis
Proposed Zoning:	CB - Community Business
Future Land Use Plan Designation:	MU-C - Mixed-Use Commercial
Screening & Buffering Requirements:	East Property Line - 10'W Level 1 West Property Line - 10'W Level 1 (unless re-zone includes adjacent owner)

Building Setbacks:	
Required: 25' from all streets	Proposed
(internal accessway)	Front : 78.5'
	Side (W): 64.1'
	Side (E): 72.5'
(Gregg Way Public R/W)	Rear : 100.1'
Maximum Impervious Coverage:	85%
Building Height:	TBD
Property Area:	±53,171 SF
Maximum Impervious Area/ Surfacing:	±45,195 SF [85%]
Proposed Building Footprint:	±4,900 SF [9%]
Proposed Impervious Paving:	±27,057 SF [51%]
TOTAL:	31,957 SF [60%]

Parking Calculations:	
Parking Required Per UDC§6.2: (5 Spaces per 1,000 SF Bldg Area)	25 Spaces [100%]
Parking Provided: (5.6 Spaces per 1,000 SF Bldg Area) (includes (2) Bike Parking and (2) ADA Parking)	28 Spaces [112%]

Notes

- Base Information.** Base information provided by Stell Surveying Services, LLC.
- Zoning.** Site is currently zoned MUB - Mixed-Use Business-Emphasis; this Site Design assumes conformance with City approval of a Re-zoning application to CB - Community Business.
- Ownership and Maintenance.** Site improvements shown on this drawing are to be owned and maintained by the owner and/or assigns.
- Architecture.** Building footprint and Trash Enclosure per ARCODEV Architects, P.C., 2024. See Building Elevations for compliance with UDC Section 6.9.
- Grading, Drainage, and Utilities.** Proposed layout/design(s) to be reviewed and finalized by Lovas Engineering, P.C. and may be adjusted during the construction permitting and Engineering Plan Review (EPR) process following approval of this Site Plan without necessitating its revision. Refer to Building Mechanical drawings for wet utility services entering buildings.
- Signage.** A minimum of one ground-mounted commercial sign will be required for business identification. Commercial signage review and approval is not part of this site plan application and shall be deferred to separate sign permit(s) at such time that design is completed. Incidental and directional signs, (i.e. "no parking," "private drive," etc.) may be installed without amending this Site Plan. Any building-mounted wall signage will be proposed through separate application(s).
- Parking and Circulation.** Vehicle parking and Circulation shown on this Site Plan is for the use of customers, employees, guests, invitees, and Delivery and Service Providers. (Asphalt surfacing may be changed to concrete at owners option without amending this plan)
- Lighting.** All building and pole mounted lighting shall conform to applicable code section(s). Applicant requests that lighting review be deferred to coincide with the building permit application.
- Parking:** Parking is reserved for employees and patrons. Up to five (5) parking spaces may be signed as "Reserved" or "Employees Only" at Owner discretion without amending this plan.
- Trash Vehicle Access:** Trash vehicles may enter the property from Bluegrass Circle, drive east past the trash enclosure, back up into the drive-through lane, access the trash enclosure for front-loader use, back up into the drive-through lane, and exit the property facing forward to Bluegrass Circle.

Open Space Approach

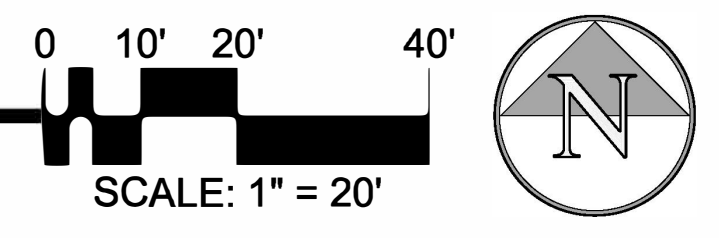
Per UDC §6.9.3, Open Space is required at 5% of the combined building footprint (±4,900 SF) for a minimum of 245 SF. An outdoor plaza area is proposed at the southwest corner of the building. Outdoor furniture, seating, and/or decorative paving may be used to define the space at the Owner's discretion. Other amenities within the plaza area may be installed without amending this Site Plan.

Gross Ratio Area:	±670 SF
Multiplier (Table 4-16):	x 1.3
Credited Open Space Area:	871 SF

Legend

	Dryland Native Seed Mix (see Landscape Plan)
	Irrigated Turf (see Landscape Plan)
	Shrub Bed Mulch (see Landscape Plan)
	Ex. Sanitary Main & Manhole (per field survey)
	Ex. Water Main & Hydrant (per field survey)
	Proposed Water Service (see Civil)
	Ex. Wire Fence to Remain
	Remove Ex. Wire Fence
	Ex. Wood Fence to Remain
	Remove Ex. Wood Fence
	Proposed Concrete Surface 4"D / 6"D (see Civil)
	Proposed Asphalt Surface (see Civil)
	Proposed Detention Area (see Civil)

Site Plan



Mrs.

Cassie Pickett, P.E. – Senior Staff Engineer
City of Cheyenne Engineering Department
Via:

City of Cheyenne OpenGov Platform

BRAKES PLUS – GREGG WAY ROW – ENGINEER’S COST OPINION (PUDC-24-66)

6/24/2024

Dear Mrs. Pickett,

In response to request from City Engineering department, below is a list of bid items and associated probable construction costs related to civil infrastructure improvements within Gregg Way ROW adjacent to the Brakes Plus Project.

*It should be noted that opinions of probable construction costs rendered by Engineer represent our reasonable professional engineering opinion and furnished for general guidance. Engineer makes no representation, warranty, or guarantee, expressed nor implied, as to the accuracy of such opinions as compared to bid or actual costs.

The estimated quantities for infrastructure are based upon site plan currently under review. Lovas Engineering, PC opinion of approximate construction costs have been derived using the following assumed key parameters:

- 387 SY 6" asphalt over 8" grading 'W' (3" grading 'A' / 3" grading 'D')
- 188 LF type 'A' curb & gutter
- 130 CY unclassified excavation
- 188 LF 5' wide 4" depth concrete sidewalk over 4" grading 'W'

The estimate also includes estimated contractor fees such as bonds/insurance, mobilization, potholing utilities, force account, traffic control, stormwater management and construction management. The estimate is based on present value and does not account for inflation in construction materials or labor costs. The estimate does not include engineering, planning or consulting fees.

Engineer’s Opinion of Approximate Construction Costs:

\$49,900.00

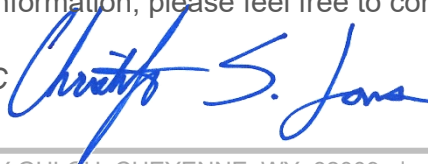
150% = \$74,850.00

If you have any questions or require additional information, please feel free to contact me directly.

Respectfully Submitted,

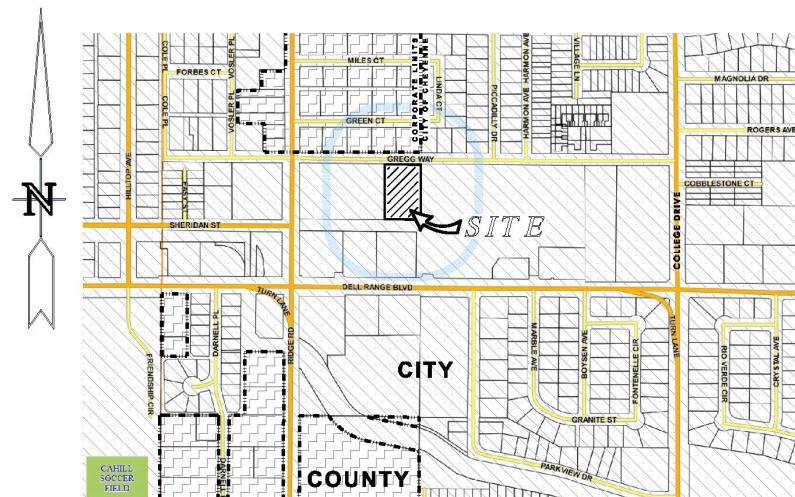
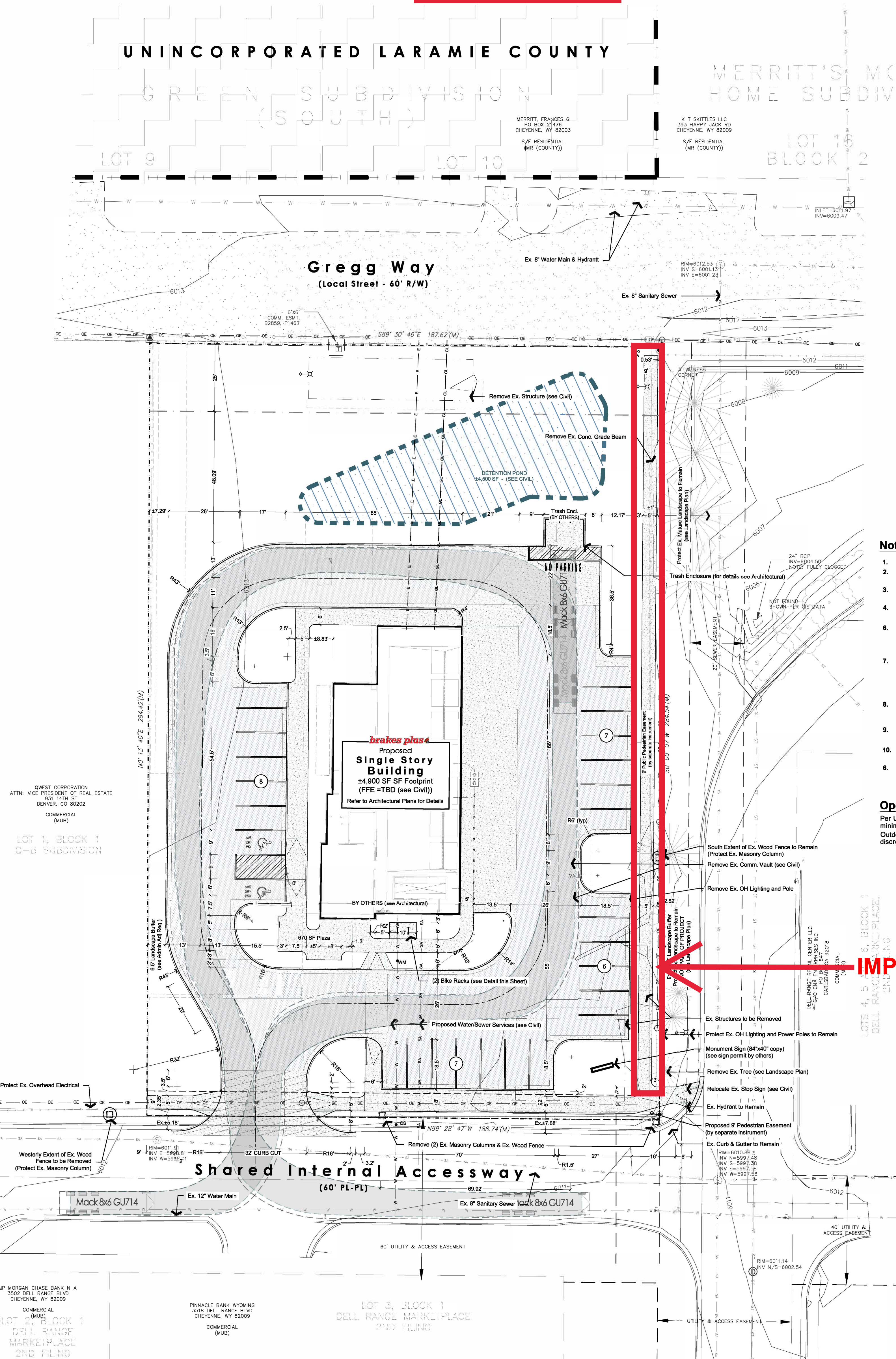
Christofer S. Lovas, PE | Lovas Engineering, PC

BRAKES PLUS - 1101



PAGE 1

EXHIBIT B



Vicinity Map

Development Summary

Legal Description:	Lot 2, Block 1, Q-B Subdivision
Property Owner:	Cheyenne Real Estate LLC, ET AL
Property Current Address:	3421 Gregg Way, 82009
Property Requested Address:	TBD - Dell Range, Blvd.
Proposed Use:	Automobile Service Repair
Existing Zoning:	MUB - Mixed-Use Business-Emphasis
Proposed Zoning:	CB - Community Business
Future Land Use Plan Designation:	MU-C - Mixed-Use Commercial
Screening & Buffering Requirements:	East Property Line - 10'W Level 1 West Property Line - 10'W Level 1 (unless re-zone includes adjacent owner)

Building Setbacks:	
Required: 25' from all streets	Proposed
(internal accessway)	Front: 78.5'
	Side (W): 64.1'
	Side (E): 72.5'
(Gregg Way Public R/W)	Rear: 100.1'
Maximum Impervious Coverage:	85%
Building Height:	TBD
Property Area:	±53,171 SF
Maximum Impervious Area/ Surfacing:	±45,195 SF [85%]

Proposed Building Footprint:	±4,900 SF [9%]
Proposed Impervious Paving:	±27,057 SF [51%]
TOTAL:	31,957 SF [60%]

Parking Calculations:	
Parking Required Per UDC §6.2: (5 Spaces per 1,000 SF Bldg Area)	25 Spaces [100%]
Parking Provided: (5.6 Spaces per 1,000 SF Bldg Area) (includes (2) Bike Parking and (2) ADA Parking)	28 Spaces [112%]

Notes

- Base Information.** Base information provided by Stell Surveying Services, LLC.
- Zoning.** Site is currently zoned MUB - Mixed-Use Business-Emphasis; this Site Design assumes conformance with City approval of a Re-zoning application to CB - Community Business.
- Ownership and Maintenance.** Site improvements shown on this drawing are to be owned and maintained by the owner and/or assigns.
- Architecture.** Building footprint and Trash Enclosure per ARCODEV Architects, P.C., 2024. See Building Elevations for compliance with UDC Section 6.9.
- Grading, Drainage, and Utilities.** Proposed layout/design(s) to be reviewed and finalized by Lovas Engineering, P.C. and may be adjusted during the construction permitting and Engineering Plan Review (EPR) process following approval of this Site Plan without necessitating its revision. Refer to Building Mechanical drawings for wet utility services entering buildings.
- Signage.** A minimum of one ground-mounted commercial sign will be required for business identification. Commercial signage review and approval is not part of this site plan application and shall be deferred to separate sign permit(s) at such time that design is completed. Incidental and directional signs, (i.e. "no parking," "private drive," etc.) may be installed without amending this Site Plan. Any building-mounted wall signage will be proposed through separate application(s).
- Parking and Circulation.** Vehicle parking and Circulation shown on this Site Plan is for the use of customers, employees, guests, invitees, and Delivery and Service Providers. (Asphalt surfacing may be changed to concrete at owners option without amending this plan)
- Lighting.** All building and pole mounted lighting shall conform to applicable code section(s). Applicant requests that lighting review be deferred to coincide with the building permit application.
- Parking:** Parking is reserved for employees and patrons. Up to five (5) parking spaces may be signed as "Reserved" or "Employees Only" at Owner discretion without amending this plan.
- Trash Vehicle Access:** Trash vehicles may enter the property from Bluegrass Circle, drive east past the trash enclosure, back up into the drive-through lane, access the trash enclosure for front-loader use, back up into the drive-through lane, and exit the property facing forward to Bluegrass Circle.

Open Space Approach

Per UDC §6.9.3, Open Space is required at 5% of the combined building footprint (±4,900 SF) for a minimum of 245 SF. An outdoor plaza area is proposed at the southwest corner of the building. Outdoor furniture, seating, and/or decorative paving may be used to define the space at the Owner's discretion. Other amenities within the plaza area may be installed without amending this Site Plan.

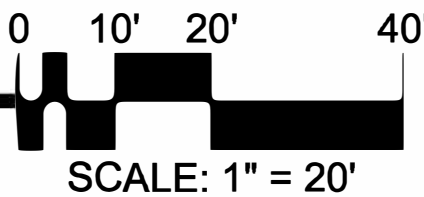
Gross Patio Area:	±670 SF
Multiplier (Table 4-16):	x 1.3
Credited Open Space Area:	871 SF

IMPROVEMENTS

Legend

	Dryland Native Seed Mix (see Landscape Plan)
	Irrigated Turf (see Landscape Plan)
	Shrub Bed Mulch (see Landscape Plan)
	Ex. Sanitary Main & Manhole (per field survey)
	Ex. Water Main & Hydrant (per field survey)
	Proposed Water Service (see Civil)
	Ex. Wire Fence to Remain
	Remove Ex. Wire Fence
	Ex. Wood Fence to Remain
	Remove Ex. Wood Fence
	Proposed Concrete Surface 4" D / 6" D (see Civil)
	Proposed Asphalt Surface (see Civil)
	Proposed Detention Area (see Civil)

Site Plan



Mrs. Cassie Pickett, P.E. – Senior Staff Engineer
City of Cheyenne Engineering Department
Via:

City of Cheyenne OpenGov Platform

BRAKES PLUS – PEDESTRIAN BYPASS SIDEWALK – ENGINEER’S COST OPINION (PUDC-24-66)

6/24/24

Dear Mrs. Pickett,

In response to request from City Engineer, Tom Cobb, P.E., during 4/24/24 meeting for the above referenced project, below is a list of bid items and associated probable construction costs.

*It should be noted that opinions of probable construction costs rendered by Engineer represent our reasonable professional engineering opinion and furnished for general guidance. Engineer makes no representation, warranty, or guarantee, expressed nor implied, as to the accuracy of such opinions as compared to bid or actual costs.

The estimated quantities for infrastructure are based upon site plan currently under review. Lovas Engineering, PC opinion of approximate construction costs have been derived using the following assumed key parameters:

- 162 SY 4" - 5' wide concrete sidewalk
- 162 SY 4" grading 'W' crushed base
- 54 CY unclassified excavation
- (1) concrete ADA ramp with detectable warning plates

The estimate also includes estimated contractor fees such as bonds/insurance, mobilization, potholing utilities, force account, traffic control, stormwater management and construction management. The estimate is based on present value and does not account for inflation in construction materials or labor costs. The estimate does not include engineering, planning or consulting fees.

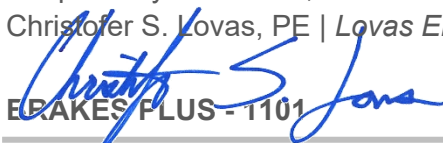
Engineer’s Opinion of Approximate Construction Costs:

\$22,900.00

If you have any questions or require additional information, please feel free to contact me directly.

Respectfully Submitted,

Christopher S. Lovas, PE | Lovas Engineering, PC


BRAKES PLUS - 1101

3421 Gregg Way

BOP



**COLDWELL
BANKER
COMMERCIAL**

THE PROPERTY EXCHANGE

BROKER'S OPINION OF PRICING



**3421 Gregg Way
Cheyenne, WY**
June 24, 2024

Mr. Palma

Subject: Brokers Opinion of Pricing

I am writing this Brokers Opinion of Pricing for the land and real estate located at 3421 Gregg Way in Cheyenne WY (Property). I researched the property's specific parcel information using the Laramie County Parcel Mapping System.

I determined the site size of the property is 1.23 acres or 53,579 square feet. It is located near the intersection of Ridge Rd. and Dell Range Blvd. within the King Soopers Shopping Center. The parcel is zoned CB (commercial).

In arriving at a pricing for this property I will be using the market approach to determine pricing for the commercial land.

****Please be advised that I am not a licensed appraiser and my opinion of value is based upon my research, my visual inspection of the property and my expertise as a local Commercial Real Estate Professional.**

THE MARKET APPROACH TO PRICING (Land)

The market approach to pricing determines pricing by comparing the subject property to comparable properties which have sold recently as well as properties currently on the market.

In order to find comparable properties I searched the Cheyenne Multi-Listing System (MLS) for similar properties that have sold within the past four years. From my search I was able to locate five similar properties that have sold in the Area. Below you will find a table summarizing these properties; I have also attached Their MLS information.

Address	Acreage	Square Foot	Sold Price	Date	Price/SF
Block 3, Lot 1 Campstool Rd.	2.12	92,347	\$1,000,000.00	1/9/2023	\$10.83
3406 Pershing Blvd.	1.91	83,200	\$1,150,000.00	7/14/2023	\$13.82
Lot 1 & 2 Hitching Post Plaza 3rd Filing	0.85	37,026	\$611,000.00	11/3/2023	\$16.50
TBD Warren Ave	0.82	35,719	\$330,000.00	2/2/2023	\$9.24
Lot 1 Hitching Post Plaza 2nd Filing	2.3	100,188	\$1,467,135.00	6/13/2023	\$14.64
Average					\$13.01

3421 Gregg Way

BOP



**COLDWELL
BANKER
COMMERCIAL**

THE PROPERTY EXCHANGE

Property Value = Price/Square Foot * Total Square Feet

Property Value = 13.01 * 53,579 = 697,062.79

Therefore, using the Market Approach to value, it is my opinion that the subject property pricing is approximately **\$697,062.79**.

Based on the easement size of 2,561 square feet the value would be:

2,561 SF X \$13.01 SF = **\$33,318.61 Easement Land Value**

Please be advised that I am not a licensed appraiser and my opinion of value is based upon my research, my visual inspection of the property and my expertise as a local Commercial Real Estate Professional.

Rob Graham, CCIM
Coldwell Banker Commercial